

I. Lawyers Write

Simply stated, legal writing encompasses a broad spectrum of legal analysis, objective legal writing, and persuasive legal writing. Lawyers engage in objective legal writing by providing advice to clients about the likely outcome of a legal dispute. Objective legal writing is also called predictive writing because the goal of an objective analysis is to predict how a court would most likely rule if presented with the client's case. Lawyers also engage in persuasive legal writing. When writing persuasively, lawyers advocate on behalf of their client in a court of law.

The fundamental skills of legal analysis and writing remain the same whether writing to predict an outcome or to persuade a court of the appropriate outcome. In both cases, you must first understand the law. Then, your explanation of the law must be organized, accurate, and clear; it should be free from grammatical errors; and it must be cited appropriately. This workbook is intended to introduce you to all of these qualities of legal writing. But the learning does not end within a few months, nor at graduation. For the remaining years of your legal career, you will need to keep within your reach a dictionary and books on grammar, citation, and style.

II. Developing as a Legal Writer

An essential component of becoming a strong legal writer is to practice that skill and to receive feedback about your writing. The more you write and receive feedback, the more your writing will improve.

Do not feel defeated with critique. All lawyers—including your professors—received plenty of critique, and they will impart critique upon your work. Critique is part of the learning process of legal analysis and writing. To succeed in law school, read your professors' comments on legal writing assignments carefully and take advantage of them. Learn from them and improve your skills. If you are lucky, your work will be continually critiqued—not just in law school but also as you practice. The savvy lawyer learns from the feedback. One day, after your writing and analysis has become sharp, accurate, and organized, the roles will change, and you will be in a position to help other new lawyers who will be just starting off as you are now.

Along the way, you should develop self-confidence in your writing—an aspect of writing that is difficult to teach but that you should nonetheless hope to acquire. Confidence will develop as you learn to make strategic writing decisions. As a first-year law student, you may be surprised how many factors play into a draft and how many decisions you will need to make—such as, “Is the law stated accurately? Have I drawn a conclusion? Have I applied the law to the facts with sufficient clarity? Do I have thesis sentences? Should this broader statement be placed in spot ‘x’ or ‘y’?” One of your goals should be to develop confidence to make macro- and micro-decisions about how you communicate your analysis.

Finally, keep reading. Read for pleasure, and read books that are well written. In doing so, you'll develop a fondness of words as well as an intuitive sense of good writing.

III. Learning Styles

Up until 25 years ago, the prevailing view was that all law students learned by listening, and thus, a typical law school classroom had 100% auditory learners. This faulty premise helped to support the predominance of Socratic-method questioning in a traditional amphitheater-styled classroom. That view was shattered with the first empirical study done in a law school, which demonstrated that “law students were diverse in their learning

styles.”¹ The Dunn and Dunn Learning Style Model was used in that study, but there are other models as well. The Dunn and Dunn Model categorizes twenty-six different elements that affect how one best learns and studies. To understand “learning styles,” it is necessary to examine how individuals process and incorporate new and difficult information into their study habits.

To better understand how you learn, we recommend that you take a learning-style assessment by accessing the following website: www.learningstyles.net. Select the adult learning-style tool called “Building Excellence.” It will cost a nominal fee. During your experience in law school, it would be helpful for you to pay attention to how you best learn. Although recently skepticism has emerged about the significance learning styles should be given, understanding the strategies through which you best learn and retain information remains a vital part of learning. The science is clear about one thing: repeated practice and engagement with new material leads to more durable, long-term learning.² This workbook is intended to give you opportunities for that practice and engagement.

Exploring how you learn and using instructional materials in creative ways would be helpful in gaining the skills of legal writing proficiency. Here are some preliminary questions you may want to ask yourself, based upon five learning-style categories:

Physiological Factors:

- Do you learn by listening (auditory)?
- Do you learn by what you see in text (visual) or in a graph/picture mode (visual picture)?
- Do you prefer to work with your hands, as in turning flash cards (tactual)?
- Do you prefer to learn by doing (kinesthetic)?

Psychological Factors:

- Do you prefer to learn step by step (analytic learners) or through the “big picture” (global learners)?
- Do you find yourself blurting out answers (impulsive) or needing time to think through an answer (reflective learner)?

Emotional Factors:

- Are you motivated by a desire to succeed that is fueled by your own ambitions or from an external source?
- Are you driven to finish a task or can you leave something unfinished (persistence)?
- Do you follow rules or avoid conformity (responsibility and conformity)?
- Do you feel a need for structure imposed from the outside or do you supply your own way of doing things?

Environmental Factors:

- Do you require silence when studying new and difficult information, or do you prefer a bit of a hum of noise or music?
- Do you need bright light when studying or dim lighting?
- Does the temperature of the room affect your ability to concentrate?

1. Robin A. Boyle & Rita Dunn, *Teaching Law Students Through Individual Learning Styles*, 62 Alb. L. Rev. 213, 216 (1998).

2. Jennifer Cooper, *Smarter Law Learning: Using Cognitive Science to Maximize Law Learning*, 44 Cap. U. L. Rev. 551, 560–61 (2016).

- When reading something challenging, can you absorb the material while you are seated in a soft beanbag-type chair, or do you need a traditional chair with back support?

Sociological Factors:

- Do you learn best while working alone, with one other in a pair, or in small groups?
- Do you prefer to have an expert in the field overseeing your work?
- Do you prefer to learn in a variety of ways, or do you prefer to do the same work in consistent patterns?

As you reflect on your answers to these questions, think about how to create a strong learning experience that incorporates your preferences. Try to experiment on your own by transforming your reading materials into products that you can better absorb. For instance, auditory learners learn by listening; however, they will remember only 75% of what they hear in a 40- to 50-minute lecture. Thus, even for students who show a strong preference for auditory learning, they still should be relying upon secondary and tertiary strengths to solidify their note-taking in class. For others, they may be learning by listening but only if they are interested in the topic. And for some, learning by listening may not be effective after a short period of time in the lecture.

Visual learners may have a strong preference for visual pictures, meaning they learn by putting concepts into graphs and pictures, rather than course outlines that are heavy with text and are linear in format. Such learners create charts, graphs, and diagrams. Later in this book, we provide examples of charts and diagrams for mapping cases. Word processing systems can help create visual images that are suitable for this learning style.

Tactual learners use their fine motor skills, fingers, and hands while concentrating. If your assessment shows that you have a strong preference for this type of learning, then the sense of touch is important and working with materials that you can manipulate will help you learn. You can create index cards and flip them over with questions on one side and answers on the other. The creation of materials with your hands will help solidify concepts, and you can experiment with maps, charts, graphs, and timelines.

Kinesthetic learners need to role-play because they experience by doing. Interactive exercises are helpful. In legal writing, the classroom exercises often simulate client counseling or, eventually, courtroom arguments. Kinesthetic learners will benefit from peer teaching, which is a popular exercise in legal writing.

You may find that you have a strong tendency toward one learning style or you may utilize aspects of different learning styles. Ultimately, as you work through this workbook and your first semester of law school, take inventory of your own learning-style preferences and the strategies through which you learn best, and tailor your study habits to maximize your preferences.

IV. Using This Book

Use this workbook as a supplement to an assigned legal writing text. We have designed the workbook so that you may write inside the book. The goals of this workbook are to reinforce the core principles of good legal analysis and writing and to give you a chance to practice what you are learning.

Cases and other authorities have been adapted throughout the book to work in concise exercise format.

Becoming a Legal Writer

Chapter 1

Assessing a Client's Case

- I. Investigating a Client's Case
- II. Drafting an Objective Analysis
- III. Exercises

Imagine you graduate from law school and open up your own law practice. A stranger knocks on your door. She is a prospective client and wants you to take her case. Do you do it? Before answering that question, you will need to investigate her case and analyze whether her claims are likely to succeed. That is, if this client files a complaint in court, what is the likelihood that a judge or jury would find in her favor? If she seeks to negotiate a settlement, what is the likelihood that she could reach a satisfactory settlement?

For many reasons, a lawyer's first step after meeting a client is to assess the client's case. One reason to pause and assess is that, for many lawyers, their practice is a business. As a business person, the lawyer must determine whether a client's case is financially worthwhile (and ethically appropriate) to take on. Thus, in private practice, before deciding whether to take the client's case, you would want to first investigate the client's claim and then objectively assess the strengths and weaknesses of the client's claim.

Lawyers who are not in private practice must also stop to assess a case before proceeding. Imagine you are an attorney at a nonprofit organization that investigates environmental hazards. Before committing your organization to litigation, you would want to assess the proposed claims to ensure that you are allocating your firm's resources in the most appropriate way. Thus, for all lawyers, practical self-interest requires an initial assessment.

More importantly, lawyers have an ethical duty to assess the strengths and weaknesses of a client's case before proceeding. The Model Rules of Professional Conduct require lawyers to exercise independent professional judgment and provide a client with candid advice.¹ And lawyers cannot assert a legal claim unless there is a viable legal and factual basis for doing so.²

1. Model Rules of Prof'l Conduct r. 2.1 (Am. Bar Ass'n 2018). Each state adopts its own version of the Rules of Professional Conduct; therefore, the rules vary from state to state.

2. Model Rules of Prof'l Conduct r. 3.1 (Am. Bar Ass'n 2018) (prohibiting lawyers from advancing frivolous claims or defenses).

We will explain each numbered section in more detail, but first, let's look at the case citation:

Court opinions are compiled in series of books called reporters. The first number refers to the volume of the reporter, volume 43. "F.2d" refers to the Federal Reporter, second series. Federal cases arising from the thirteen United States Circuit Courts of Appeals are reported in the Federal Reporter. The final number, 273, refers to the page in volume 43 of F.2d where the opinion begins. Thus, the full cite includes the name of the case, the reporter volume, the page, the court, and year of the decision.



A. Caption

- 1 **Case name.** The name of this case is *McBoyle v. United States*. Most published cases are appellate cases. Here, since McBoyle lost at trial below and brought the appeal, he is the **appellant** and is listed first. The United States is the **appellee**.
- 2 **Docket number.** The number 213 is the appellate docket number and is assigned by the circuit court as an identifier. You generally do not need this number, unless you need to go the appellate clerk of court to look at the file of the case.
- 3 **Deciding court.** This case was decided by the Tenth Circuit Court of Appeals.
- 4 **Date of decision.** The Tenth Circuit Court of Appeals issued its opinion on August 18, 1930.

B. Publisher's Enhancements

- 5 & 6 **Headnotes.** Headnotes are written by an editor, specifically from the West Publishing Company in the case above, and are not part of the opinion. Headnotes summarize many of the issues discussed in an opinion. You will find that headnotes are important research tools, but remember not to rely on them since they are not the court's own words—you must always go to the court's opinion as the primary source.

"Automobiles 341" is a key number. The key number, which includes both the word and the number, is part of the West Publishing Company research system. This number permits you to research the same issue in many different jurisdictions and in a variety of West publications. Lexis, another major legal publisher, has its own system of headnotes for cases it publishes.²

- 7 **Judges.** Judge Phillips wrote the majority opinion, and Judge Cotteral dissented from the majority opinion.
- 8 **Court below.** McBoyle appeals the decision of the United States District Court of the Western District of Oklahoma.
- 9 **Information about the appeal.** McBoyle was convicted under the National Motor Vehicle Theft Act, and he appeals.

2. Some opinions have summaries of the case before the headnotes. These summaries are not part of the opinion and cannot be relied upon or quoted, but they are useful research tools when you are looking for case law.

- 10 **Disposition.** This is the judgment of this court. The Tenth Circuit affirmed the trial court's conviction of McBoyle. The result here is that the trial court verdict and sentence will remain unchanged. This judgment can also be found at the end of the case.
- 11 **Attorneys representing McBoyle.** Harry F. Brown, Frank Dale, and Robert W. Hoyland represented McBoyle, defendant-appellant.
- 12 **Attorneys representing the U.S. government.** Roy St. Lewis, Fred A. Wagoner, and William Earl Wiles represented the United States, petitioner-appellee.
- 13 **Panel members.** Appeals are typically decided by a panel of three appellate judges. This appeal was decided by a three-judge panel made up of Judges Cotteral, Phillips, and McDermott.

C. The Body of the Opinion

- 14 **Parts of the opinion.** While some judicial opinions may differ a bit in structure, the body of most judicial opinions contain the following parts:
 - Facts
 - Issue or question presented
 - Holding
 - Reasoning
 - Judgment or disposition
 - Concurring and/or dissenting opinions, if any

II. The Three-Step Process for Deep Reading

Now that you have a picture of the typical parts of a case, you can begin reading. You can follow the three-step process for reading comprehension outlined in the introduction to this chapter for reading cases: (1) get context, (2) skim the case, and (3) read the case closely. Let's look at each step.

A. Get Context

Novice students—to their detriment—skip this step. However, context is very important. A case represents one legal principle within a larger system of rules. To understand where this one case—and the principle that it represents—fits, you must have a sense of the larger system of rules.

You can get a sense of the larger system of rules in several ways. First, if the cite is part of a casebook for a course, you can review the table of contents. The table of contents will usually list the major legal concepts covered in each chapter. By locating the chapter within which the case appears, you will already know which legal concept relates to the case.

A second way to get context is by reading the relevant portion of a treatise or commercial outline about the course subject matter. Once you know (by reviewing the table of contents) which legal concept the case relates to, you can read about that area of law in more detail in a treatise or a commercial outline. Doing so will provide you more detail about the area of law that the case will address. In other words, you will have a sense of the forest before examining an individual tree—the case itself.

Once you have a framework for the legal system within which this case resides, you are ready to read the case.

B. Skim the Case

To read a case effectively, begin by skimming the surface of the case. Skimming will not only provide you with a framework for the case, but it will ultimately save you time. When you skim a case, look for the big concepts outlined below. Simply note where each part exists within the case, but avoid getting bogged down in the details. Doing so will allow you to see how the case is organized. Once you understand the organization and the big concepts of the case, you can slow down on the second read and focus on the details.

C. Read the Case Closely

Once you have outlined the structure of the case and the big concepts within it, you are now ready to read the case more closely. As you do, identify the following:

- Specific legal issue the court is deciding
- Relevant facts (those facts that led to the holding)
- Holding in this case
- Additional reasoning or rationale that connects the facts to the holding
- Disposition
- Any concurring or dissenting opinions

III. Exercises

The exercises below will help you to identify and work with the different parts of judicial opinions. They will also help you develop skills for critically reading cases.

Exercise 3.2.1: Dissecting the Parts of a Case

Reread the *McBoyle* case (above) and respond to the questions below:

1. What were the relevant facts of the case?

2. What was the issue before the court?

3. What did McBoyle's lawyers argue the term "vehicle" should include?

4. What did the government argue the term "vehicle" should include?

5. Which argument did the court find to be more convincing, and why?

6. What was the basis for the dissenting opinion?

7. Do you agree more with the majority or the dissent? Why?

Exercise 3.2.2: Identifying a Holding

Marietta Title Insurance Company v. Rath,
State Court (2016)

Plaintiff Marietta Title Insurance Co., with offices in Park County, brings this action against Paul Rath asserting breach of a noncompete covenant. Plaintiff seeks injunctive relief and asks that this Court permanently enjoin defendant from working in the title insurance business in the state of Utopia for two years. Plaintiff grounds its case upon the assertion that Rath's services were unique and, therefore, he should not be permitted to work for a competitor.

Marietta hired Rath in 2012 as Senior Vice President in charge of several major sales accounts. On the first day of his employment, Rath signed a covenant not to compete, restricting him from working for another title insurance company for two years following his termination of employment services from Marietta. However, in August 2014, Rath abruptly terminated his employment with Marietta and signed on as senior vice president of a competitor, Charles Schwartz Title Co., also based in Park County. At the hearing, evidence was produced indicating that Rath had relationships with specific customers of his assigned accounts and that these customers would engage only Rath for Marietta business. Rath had a special knowledge of a computer program that was helpful for his customers' business. Rath had frequent contact with his customers. Rath's territory was limited to Park County. The accounts he oversaw were limited in the same geographic locales.

In the state of Utopia, assuming a covenant by an employee not to compete is reasonable in time and geographic scope, enforcement will be granted to the extent necessary: (1) to prevent an employee's solicitation or disclosure of trade secrets; (2) to prevent an employee's release of confidential information regarding the employer's customers; or (3) in those cases where the employee's services to the employer are deemed special or unique. In a case where (1) is met, but not (2), Utopia courts have granted

injunctions to enforce covenants not to compete based upon the unique services of the defendants. In *Matheson Savings Bank v. Jonas*, the state court found that the former employee's relationships with the clients were special and qualified as unique services. The *Jonas* court deemed these relationships unique because of the highly competitive banking industry and the rare talent that rose to the top of the banking world. In addition, the *Matheson* clients had regular contact with Jonas. Thus, the court granted injunctive relief.

In analyzing whether an employee's services are unique, the focus is less on the uniqueness of the individual person and more on the employee's relationship to the employer's business and the clients.

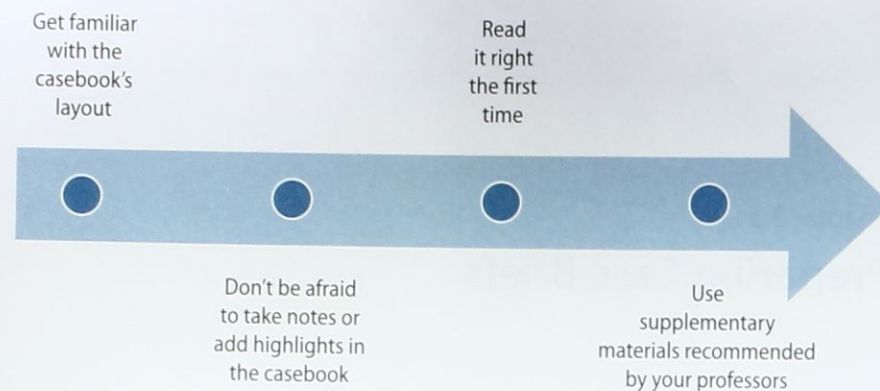
Here, facts produced at the hearing indicate that Rath's services were, and continue to be, unique. Therefore, this Court grants plaintiff's permanent injunction; however, defendant Rath is restricted from working for title insurance companies having offices within the geographic parameters of Park County only.

1. According to the court, when are non-compete covenants enforced?

2. What happened in the *Jonas* case?

3. What do you think the holding is in *Rath*? What facts does the court rely on in its holding?

Figure 3.3.A: Advice for Using Casebooks Effectively



Let's examine each one:

- **Get familiar with the casebook's layout:** Each book looks different, and some of those differences may change the way you read and relate to your book. Study the Table of Contents—it will tell you where you are and where you are going during the semester. The very placement of the case within the Table of Contents can help you target the relevant doctrine that the case illustrates; knowing why you are reading something will be just as beneficial to you as remembering the details of what you are reading.
- **Don't be afraid to take notes or add highlights in the casebook:** As you get deeper into the text, it will become easier to get lost or miss key details. Having a method to identify material that is important—whether that be making notes in the margins, highlighting key passages, or taking notes on a separate sheet of paper—will help you make sense of the text.
- **Read it right the first time:** Using the reading for comprehension steps discussed in Chapter 3.2, *Reading Cases*, will help you read efficiently and effectively. While it may take a bit longer the first few times, putting in the time or effort necessary to learn what is important will help you better understand the material. It will also save you time before exams, as that initial effort will make reviewing much easier.
- **Use supplementary materials recommended by your professors:** Some of your professors have listed other supplementary books and materials to go along with your casebook. While it may seem like an extra chore, you should read these materials. Supplementary materials will help illuminate key concepts or summarize principles in different ways from the casebook, which will help you understand and absorb the concepts more effectively.

In a casebook class (think property, criminal law, or torts), the overarching goal for the semester is to learn the rules (or principles) that govern that area of law. To that end, each case that you will read will represent a legal principle. As you read a case, your goal will be to extract the legal principle represented in that case.

Law professors have other goals for the class. Those goals may include teaching students how to:

- identify the different parts of the case;
- apply the rule from the case to a set of facts;
- understand the principles of law represented in the case;

- understand policies underlying the law;
- identify the parties and the arguments being made;
- distinguish between relevant and irrelevant facts; and
- understand the implications of the court's holding on future cases.

Thus, when reading a case to prepare for a law school class, you will need to prepare for the major goal—understanding the legal principle that the case represents—and prepare for other educational goals your professor may have.

To that end, many students “brief” cases to prepare for class. Preparing a case brief is a form of note taking. The case brief will help you remember the key points of a case and respond to your professor's questions during class. Putting in too much information will weigh you down and keep you from remembering the important or salient facts. Conversely, you cannot ignore key facts just to save space or shorten the briefing process. It's a process that depends on the complexity of the case. As a rule of thumb, your case brief may range anywhere from half a page to over a page long. Going any longer may mean that you have included too many superfluous details.

II. Format of a Case Brief

No one perfect format exists for briefing cases.¹ Each professor will want you to remember different kinds of details for that professor's course, so what works best in one class may not work well in another. Modify the format as you need to satisfy the demands of each professor. You may find that considering the following suggestions is a good place to start:

A. Typical Parts of a Case Brief

1. **Name of the case.** The heading identifies the case, helps you locate it quickly and refreshes your memory. Begin with the name of the case. Then, designate the parties (1) as they were in the trial court, (2) their status on appeal, and (3) the relationship that gave rise to the controversy.

Lowell v. Trent

P/Π/Appellant/Landlord v. D/Δ/Appellee/Tenant

The name of the case tells us that Lowell (the landlord) is suing Trent (the tenant). At the trial level, Lowell was the plaintiff (P, Π) and Trent was the defendant (D, Δ). Trent won the case, and Lowell appealed. Lowell is thus the appellant (or petitioner). Trent responded to the appeal, and is the appellee (or respondent).

Courts may refer to the parties either by the designation below (plaintiff, defendant), by their designation on appeal (appellant/petitioner, appellee/respondent) or both, which may be confusing. Do whatever you find helpful to keep track of the parties. It may be useful to identify the parties by their relationship (landlord/tenant; employer/employee; automobile driver/accident victim) both to help you keep track of them and to quickly refresh your memory as to the facts of the case.

2. **Court.** You will find it helpful to note which court decided the case and whether it is a trial, an intermediate, or the highest court. Also note whether it is a federal or state court.

1. Much information in this chapter had its origins in a handout, *Navigating Your 1L Year*, based on materials from the LWI Idea Bank and various LWI conferences.

Chapter 3.3

Preparing Case Briefs

- I. Casebooks
- II. Format of a Case Brief
 - A. Typical Parts of a Case Brief
 - B. Sample Case Brief
- III. Exercises

To read cases assigned for a law school course, you must first step back and understand the purpose of a doctrinal law school class. A doctrinal law school class is one that teaches “doctrine.” The word “doctrine” refers to a system of principles. In most law school classrooms, you learn the doctrine—or system of principles—that relate to a particular area of law, such as the principles that relate to torts, criminal law, constitutional law, or civil procedure. (By contrast, other classes, such as Legal Research & Writing or Trial Practice, do not focus on a single area of law; rather, they focus on developing legal analysis and related skills through understanding doctrinal theory and providing opportunities for practice.)

For most of your 1L classes, you will be reading from a casebook. This section provides you with an overview of what a casebook is—and is not—and how to get the most out of reading cases from your casebook to prepare for class.

I. Casebooks

A casebook is a legal textbook that uses actual edited appellate court cases and other legal documents to teach legal principles. In law school, virtually all professors teaching core doctrinal classes do so by using casebooks. Learning how these books work will help you get the most out of them as you do your weekly readings and prepare for class discussion.

Casebooks contain the edited appellate cases, along with statutes, codes, and regulations that have led up to the development of modern legal doctrines. However, no two casebooks are alike, and different casebooks include different kinds of material in their pages and for different reasons. Figure 3.3.A, below, provides some advice to get the most out of your casebooks.

3. **Year of decision.** This provides historical context.
4. **Facts.** Include events that led one party to initiate legal proceedings against the other. Briefly summarize the facts as they appeared at trial, and include only relevant or key facts—specifically, those that relate to the problem at hand. One guide to identifying relevant facts is to ask: If this fact were changed, would the court reach a different conclusion? To help you get started, and to check your understanding of the facts, ask yourself:

- What happened between the parties?
- What cause of action (legal theory, claim, charge, argument) does the plaintiff have?
- What facts are relevant to plaintiff's claim?
- How did the defendant respond?
- Did the defendant assert defenses or claims against the plaintiff?
- What does the plaintiff/appellant want the court to do?
- What facts are most relevant to the defense's arguments?

If the professor asks, "What are the facts of this case?" or "What happened in this case?" you should not answer, "Plaintiff is suing the defendant." Begin, instead, in a way that identifies the plaintiff, the salient facts, and the cause of action. For example: A landlord (Jones) is suing her tenant (Smith) for breach of contract due to the tenant's failure to pay rent.

5. **Procedural history.** The procedural history is the history of the case as it developed through litigation up to the current point in time. When summarizing the procedural history, trace the stages of litigation until you reach the present court's decision. You may want to check whether any of the questions below apply to the case you are reading:

- What is the plaintiff claiming?
- What happened in the court(s) below?
- Was the original action tried before a jury or before a judge alone?
- Was summary judgment or a directed verdict granted for one party?
- Which party was successful?
- What was the final disposition of the case in the trial court?

Remember to consider only those facts or issues that are most salient or relevant. Detailing every document or motion filed with the district court will not help you understand the basic events that occurred in the litigation process.

6. **Issue.** The issue is the question (or questions) the court is called upon to decide in order to resolve the dispute between the parties. Since you will be primarily reading appellate court cases, concentrate on the issue or issues in controversy **on appeal** rather than those already handled at the district court level. Learning to spot and correctly state the issue takes time and practice, and it is a major reason why briefing cases is so important. A good statement of the issue or question presented considers whether a particular law, rule, or definition requires a particular outcome or finding when it is applied to the facts of the case. Start by asking the broadest legal question first:

- Did the defendant have the intent to cause injury, as required for a second-degree burglary?

- Did the advertisement constitute an offer under contract law?

Then, incorporate the key facts. You should also phrase the question in a way that suggests what the outcome might be.

- Did the defendant have the intent to cause injury, as required for a second-degree burglary, when, as he fled from the complainant's apartment, he let out a karate yell and threw her to the ground?
- Did the advertisement for a one-day-only sale for one genuine lapin stole, worth \$26, for \$1 constitute an offer under contract law?

7. **Holding.** The holding is the answer to the question asked in the issue. The holding may include a one-word answer (yes or no), but should also include the key facts that led to the decision. A holding may be stated narrowly or broadly, and that may depend upon the court's intention. A court does not have to answer every issue presented to it. It may only need to reach a conclusion on one issue to dispose of the case. The holding only answers the questions asked, and it has precedential value only on those points (and only within that jurisdiction). When considering the holding, ask yourself what actually happened to the case and to the parties involved when the court issued its ruling. Below are some questions that may help:

- After the court answered the question presented, what happened?
- Did it affirm the lower court, reverse its decision, or remand (send the case back) for further proceedings?
- Did the court award damages? If so, to whom, for what, and how much?
- Did the court issue an injunction, order a hearing, impose a prison term, or require some other action to take place?

8. **Rationale or reasoning.** In this section, you must try to identify the court's explanation and justification for its holding. **DO NOT** merely quote from the court's opinion. Force yourself to state in your own words what you think the court's reasons are for deciding the case the way it did. Given the common law decisional process, a court can follow precedent or it can develop a new rule. This can result in a wide range of possible outcomes.

If the decision follows precedent, the reasoning will justify applying the existing rule. The court may compare the present case to the precedent case and conclude that the significant facts are identical, thereby requiring the application of the precedent rule. It could also conclude that, although the facts are not identical, they are sufficiently similar to justify the same result. Alternatively, the court could conclude that the significant facts are not sufficiently similar to justify the same result, and the court could distinguish or limit the precedent to its facts and thereby refuse to follow it. Or a court can decide not to follow a lower court decision, stating policy considerations. You may want to ask yourself the following questions:

- What are the stated grounds for the court's decision?
- Do the stated grounds seem to be the real reasons for the decision?
- Does the case follow or depart from precedent?
- If the case involved a statute, did the court consider the legislative intent? Did the court uphold or strike down the statute?

or a flow chart. The format of a case brief does not matter. What is important is that your case brief—no matter the format—helps you understand the case and how it fits within the larger legal landscape.

III. Exercises

The exercises below will give you practice dissecting the parts of a case and preparing for class discussion. The exercises enable you to evaluate different types and forms of case briefs so you can determine which will be most helpful to you.

Exercise 3.3.1: Evaluating the Content of Case Briefs

Review the two sample case briefs below, which are based on the *McBoyle v. United States* case that you examined in Chapter 3.2, *Reading Cases*. Then, evaluate whether you believe case brief 1 or 2 would best help you respond to questions in class. Indicate your thoughts by answering the questions that follow the sample case briefs.

Case Brief 1

McBoyle v. United States

Appellant/Defendant v. Appellee/Plaintiff

Decided: August 18, 1930

U.S. Court of Appeals for the 10th Circuit

Judge Phillips

Facts:

- On July 2, 1926, Defendant hired Lacey to work at his commercial airport in Galena, Illinois.
- In October 1926, at Defendant's request, Lacey went to Ottawa, Illinois, to steal a Waco airplane from Aircraft Corporation.
- Lacey flew the stolen plane to Galena and arrived on October 6, 1926.
- On October 6, 1926, Lacey flew the airplane to Guymon, Oklahoma, per McBoyle's instructions.
- While in Guymon, McBoyle instructed Lacey to sell or store the stolen airplane and come back to Galena. They communicated with each other via telegraph.
- When Lacey returned to Galena, McBoyle instructed him to take to Guymon one of his airplanes (a Waco airplane of the same make and model as the stolen airplane).
- McBoyle claimed that the telegraph referred to liquor in the airplane, not the airplane itself.

Procedural History:

- Defendant was convicted and sentenced for violation of the National Motor Vehicle Theft Act, 18 U.S.C. § 408, in the U.S. District Court for the Western District of Oklahoma.
- In the indictment, Defendant was charged with causing the transport of in-

terstate commerce from Ottawa, Illinois to Guymon, Oklahoma. The interstate commerce was a stolen Waco airplane, property of the U.S. Aircraft Corp.

Issue:

- Whether the Waco airplane is classified as a "motor vehicle" as it is defined in the National Motor Vehicle Theft Act, which states: "the term 'motor vehicle' when used in this section shall include an automobile, motor cycle, or any other self-propelled vehicle not designated for running on rails."

Holding:

- "Any other self-propelled vehicle" in the National Motor Vehicle Theft Act includes an airplane and any other like means of conveyance or transportation self-propelled and is of the same general class as an automobile and a motorcycle.

Reasoning:

The Court looked to the derivation of "vehicle" and the definition of "vehicle" to reach its holding. In the Century Dictionary, a "vehicle" is "any receptacle, or means of transport, in which something is carried or conveyed, or travels." In Webster's Dictionary, a vehicle is a means of conveyance, especially on land. Corpus Juris defined a vehicle as a self-powered vehicle used for carrying passengers or materials. "Vehicle" is derived from the Latin "vehiculum," which means ship or carriage.

The Court adopted a broad definition of "vehicle" to include an airplane. It reached this conclusion because an airplane is self-propelled, as required by the statute, and designed to carry passengers and cargo from one place to another. Additionally, the Court analogized an airplane to an automobile because both serve the same general purpose and it is of the same kind and class of the enumerated motor vehicles.

Although Defendant contended that a "vehicle" only includes modes of transportation on the ground under the doctrine of *ejusdem generis*, the Court did not agree. Because the statute included the phrase "any other self-propelled vehicle," the Court reached its broad definition.

Separate Opinions and Dissents:

Judge Cottle, dissenting.

The judge agreed with the Defendant and applied the rule of *ejusdem generis*. Under the doctrine, although an airplane is self-propelled, and it is a vehicle, it is not classified with an automobile or motorcycle. Additionally, while automobiles were commonly stolen, airplanes were not. The judge reasoned that Congress sought to draft a statute to deter automobile theft, and not airplane theft, because it was not a common problem.

Case Brief 2

Case Brief for *McBoyle v. United States*

Facts:

- McBoyle (D) operated a commercial airline out of Galena, Illinois, in 1926.
- D hired Lacey as an aviator in 1926.
- D induced Lacey to steal a Waco airplane from the Aircraft Corporation in Ottawa, Illinois, and fly it back to Galena, where D changed the serial number of the plane to conceal its identity.

Whether Ms. Holmes used her driveway in a way that caused the defect, and whether Mr. Lillo tripped on the portion of the sidewalk affected by the driveway, are questions of fact. Those questions of fact would ultimately be decided by a jury trial. Before a trial, we would need to conduct further discovery to determine whether we could likely prove that he tripped because of the way in which Ms. Holmes was using her driveway.

Please let me know if you want me to research possible claims against the City, or if you have any further questions about the research above.

Best regards,

Donovan

6. Which email is more effective? Why?

7. Which email better informs the supervising attorney about the legal rule and its application to the facts of Mr. Lillo's case? Why?

8. Would a supervising attorney need the details about how the associate found the ordinance, as provided in Version 1?

Chapter 2

Sources and Systems of the Law

- I. Sources of the Law
- II. Systems within the Law
- III. Questions to Ask Before You Research
 - A. Which Jurisdiction Governs my Client's Legal Questions?
 - B. What Is the Structure of the Courts in the Governing Jurisdiction?
- IV. Weighing the Authorities You Gather
- V. Exercises

To successfully analyze a client's legal problem, you will need to find the potentially relevant law and then determine the law that will be applicable. To do that, you must understand the sources of law in the United States, and you must be able to assess the weight of each legal authority—that is, the likelihood that a court would rely on a particular authority in reaching a conclusion. This chapter will introduce you to the most common sources of law in the United States and help you develop the skills necessary to select the authorities that will be most relevant to a court's analysis.

I. Sources of the Law

In the United States, each branch of government—the legislative, judicial, and executive—has the capacity to produce law. Figure 2.A illustrates the most common kind of law each branch produces.¹ Any law emanating from a branch of government is a **primary authority**. By contrast, a **secondary authority** (such as a treatise, hornbook or law review article) describes the law. That is to say, primary authority in a jurisdiction is the law, while secondary authority will help researchers understand and locate the law.

1. As you continue through law school, you will learn more about additional kinds of primary authority—such as Executive Orders—but the primary point here is to understand that each branch of our government produces law.

For all of these reasons, an attorney must investigate a claim and objectively assess its strengths and weaknesses before proceeding. This chapter introduces you to those steps in a lawyer's practice: How does an attorney investigate a client's claim? And what does an objective analysis of a client's claim look like?

Those two steps—investigating a client's claim and producing a polished, objective analysis—represent the first and last steps of a process that allows an attorney to objectively assess a client's case. The purpose of this chapter is to give you experience with that first step—investigating a client's claim—and a look at the last step—producing a polished written analysis—so that you will have a sense of the road ahead. Table 1.A provides a more detailed overview of the steps in the process that allow an attorney to produce a polished objective assessment of a client's claims.

Table 1.A: The Process of Analyzing and Evaluating Your Client's Legal Question

Stage of the Process	Steps	
Investigate a client's case	1. Investigate the facts	- Understand your client's factual situation by asking questions about who, what, where, when, and why. - Determine the client's concerns and goals. - Consider legal claims that the facts may support.
	2. Research the law	- Find the sources of law that will apply to your client's case. - Critically read the relevant authorities. - Determine legal claims that are supported by the facts.
Prepare to write	3. Organize your authorities	- Organize to understand the relationship among the relevant authorities by using a case chart or other method. - Outline the legal principles at issue and the legal authorities that will guide your analysis of the client's legal question.
Produce a polished objective analysis	4. Draft your work product	- Determine whether you need to draft a memorandum of law, an email, or a client letter. - Draft.
	5. Edit and polish your work product	- Review the relevant authorities to ensure your analysis is consistent. - Edit the substance of the draft to ensure your argument is complete and logically ordered. - Polish to weed out words that might confuse and to eliminate errors in grammar, punctuation, legal style, and citation. - Reread one last time carefully before submitting to your supervising attorney.

I. Investigating a Client's Case

After addressing any ethical issues that may prevent you from taking the case, the first step in assessing a client's case is to gather information. The information to be gathered is usually of two kinds: facts and law. The two are interdependent. The facts of a client's case determine the law that will be relevant. Meanwhile, the law determines which facts will be relevant. Thus, as you know more about the facts, you can expand your legal research to look for other legal theories, or you can toss out legal theories that are inapplicable to the

facts of the case. Similarly, as you know more about the law that might be relevant, you can expand your factual investigation to determine whether the facts will support a particular claim, or you can dive deeper into the facts to search for additional support for a legal claim.

At the beginning of your legal career, your knowledge about the law will have less depth and, therefore, you will likely find yourself seesawing between fact investigation and legal investigation. As your knowledge of the law deepens and expands, you will have greater ability to gather the relevant facts more immediately. With time and experience, your legal research will likely be more focused on particular or novel aspects of your client's case rather than on learning entirely new areas of law.

II. Drafting an Objective Analysis

As you are researching the facts and law and organizing your authorities, you will begin to assess the strength of your client's case. Whether you are working in a solo office or as a junior attorney in a larger legal practice, you will undoubtedly need to communicate your analysis to your client or a senior attorney. This communication summarizing your analysis can be done in many ways. You may, for example, communicate your analysis orally. Often, though, attorneys will communicate and memorialize their analysis in either an "interoffice memorandum" ("memo" for short) or an email.

III. Exercises

Two fact patterns below will give you the opportunity to meet clients, think about the information that you need to gather, and decide how you would gather that information. As you read, think about not only the information that the potential client can give you, but what other information you might be able to collect from other sources.

Exercise 1.1: Investigating Ethan Tseng's Potential Claim for IIED

Mr. Ethan Tseng, a nineteen-year-old college student, is a prospective client of your firm. You and another attorney in your office, Carla Perez, meet with Mr. Tseng for an initial interview. He tells you that his college professor, Dr. Susan Fume, has been posting "terrible, absolutely terrible" things on social media about her experiences teaching at Park College in North Carolina, and he is one of the students in her class. The things she has said have made him "sick." He wants to know whether he can sue her under North Carolina law and if you will take the case.

Questions:

1. What initial questions should you and Carla ask Mr. Tseng about the facts of the case?

After conducting some research, you learn that the most appropriate claim would be a tort action for intentional infliction of emotional distress. In North Carolina, a claim for intentional infliction of emotional distress requires a plaintiff to prove that the defendant's conduct: (1) was extreme and outrageous, (2) was intended to cause severe emotional distress, and (3) did cause severe emotional distress. See *Woodruff v. Miller*, 307 S.E.2d 176, 178 (N.C. Ct. App. 1983). A plaintiff can prove intent by showing the defendant's "reckless indifference to the likelihood that he will cause emotional distress." *Bryant v. Thalhimer Bros.*, 437 S.E.2d 519, 522–23 (N.C. Ct. App. 1993). A person acts "recklessly" if that person acts "in deliberate disregard of the high degree of probability that the emotional distress will follow." *Dickens v. Puryear*, 276 S.E.2d 325, 333 (N.C. 1981).

Now that you understand the elements of the cause of action, your supervisor suggests that you focus on element (1) for now: Was the conduct extreme and outrageous?

Questions (continued):

2. What questions do you now ask of Mr. Tseng as you narrow your facts under element (1)?

3. If Mr. Tseng brings a claim against Dr. Fume, who would be the plaintiff, and who would be the defendant?

Plaintiff _____

Defendant _____

Now, you conduct a little more research and find the following case:

Briggs v. Rosenthal
327 S.E.2d 308 (N.C. Ct. App. 1985).

Plaintiffs' complaint is premised on the theory of intentional infliction of emotional distress. In summary, the complaint alleges that their only son, Warren Briggs, Jr., died in an automobile accident on 30 June 1982. In October 1982 defendant Rosenthal wrote an article about Warren, which was published by defendant Sun Publishing Company in a magazine-periodical called *The Sun*. According to the complaint, the article described several unpleasant characteristics of Warren in a manner calculated to cause outrage, it was published recklessly and irresponsibly, and defendants knew or should have known that the article would cause great pain to plaintiffs.

In the article, "Saying Goodbye to Warren," defendant Rosenthal described his

friend Warren as being a heavy drinker, but also honest, full of life, tender, happy, free and optimistic:

No categories really work for Warren. Because I can't place him, I am driven to write this piece which might enable me to touch on his complexity

For instance, strangers usually disliked him when he was drinking, which was a lot of the time, because he wasn't serene: he rolled around town with a raucous energy, his eyes on fire, his tongue constantly testing out accents from weird countries. His life would pour out of his stunning sea-green eyes and out of his red, red face. He would sputter, hold his head in his hands, and whirl around in circles.

Yet I don't want to take anything away from my friend as I try to understand him, now that his death makes that an obligation. He was confused, but so are we. He traded in a lot of possibilities for good times but almost everyone else trades in the good times for possibilities, which to Warren were unimaginable. And the things he kept were wonderful—his spirit, his insistence that boredom was the enemy, his refusal to be false or dishonest

After reading the article, "Saying Goodbye to Warren," this court concludes that the plaintiffs cannot state a claim for intentional infliction of emotional distress. To prove intentional infliction of emotional distress, plaintiffs must prove: (i) extreme and outrageous conduct, (ii) that is intended to cause severe emotional distress to another, and (iii) does cause severe emotional distress. *Dickens v. Puryear*, 276 S.E.2d 325, 333 (N.C. 1981).

As to what is sufficiently outrageous to give rise to liability, the comments in the Restatement are instructive. Liability has been found only where the conduct has been so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community.

Here, plaintiffs cannot prove that publication of the article was extreme and outrageous conduct. To prove extreme and outrageous conduct, the actions must extend beyond mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities. There must still be freedom to express an unflattering opinion. See Restatement § 46, Comment d.

Although perhaps not flattering, the article was honest, sincere, and sensitive. Although we recognize that to plaintiffs, grieving parents bereft of their son, the article was offensive, we find that the article does not reach the level of extreme and outrageous conduct necessary to sustain a cause of action.

Upon further questioning of Mr. Tseng, you learn that he claims to have seen the following two Facebook posts, which were posted by Dr. Fume:

September 5. I just reviewed the first set of papers from my English Comp students. They are totally incapable of putting together a grammatically correct sentence! What is the world coming to?

September 21. Another set of papers from my dopey English Comp students. Here is an example of ludicrous writing: "My life has been a challenge, a swamp. Like the trials and tribulations of a porn star or a heroin addict, I to [sic] have my demons."

Mr. Tseng claims to have written that quoted sentence in one of his papers for Dr. Fume's class and now feels "outed."

Dr. Fume's facebook page includes 100 of her personal friends and family, plus approximately forty former students and five current students from Mr. Tseng's composition class. The current composition class has thirty students.

Questions (continued):

4. Having read *Briggs v. Rosenthal*, what are your initial thoughts about the likelihood that Mr. Tseng should pursue his claim?

5. Are there additional questions you would like to ask Mr. Tseng or additional information you would like to pursue to understand his litigation goals?

Carla now asks you to examine whether Mr. Tseng will be able to prove that his college professor's conduct was extreme and outrageous. Below, you will see two analyses, both of which objectively analyze whether Mr. Tseng could successfully prove a claim for intentional infliction of emotional distress. The first analysis is delivered in an email. The second analysis is delivered in a memo.

The first purpose of this exercise is for you to see what an objective analysis looks like—whether in a memorandum or in an email. The second purpose is for you to begin thinking about the circumstances under which you would want to use one format or the other.

Model 1—An Email Analysis

From: Associate
Sent: Thursday, August 10
To: Carla Perez [cperez@zalassociates.com]
Subject: Tseng's IIED claim
Attachments: Woodruff.docx
Briggs.docx

Carla:

You asked that I research whether Ethan Tseng can prove a claim based upon Intentional Infliction of Emotional Distress against Dr. Susan Fume, a college professor. Specifically, you asked that my analysis focus on the element of extreme and outrageous conduct. Although Dr. Fume's conduct lacked professionalism and tact, her conduct did not rise to the level of extreme and outrageous.

A defendant's conduct is extreme and outrageous when the defendant persistently and publicly distributes derogatory, misleading information. See *Woodruff v. Miller*, 307 S.E.2d 176, 178 (N.C. Ct. App. 1983); *West v. King's Dept. Store, Inc.*, 365 S.E.2d 621, 625 (N.C. 1988). However, liability cannot be found when the conduct or written word falls into a category of merely "insults, indignities, threats, annoyances, petty oppressions, or other trivialities." *Briggs v. Rosenthal*, 327 S.E.2d 308 (N.C. Ct. App. 1985).

According to Mr. Tseng, Dr. Fume posted derogatory messages on her Facebook page that were humiliating to her current college students. Although these comments were negative, they did not rise to the high standard of extreme and outrageous conduct. In the *Briggs* case, the court held that a newspaper columnist who wrote an unflattering obituary was not liable for the tort of intentional infliction of mental distress. *Id.* at 312. Affirming the lower court's decision to dismiss the complaint, the court found that sentiments were not "flattering," but the article was "honest, sincere and sensitive." *Id.* Similarly here, although the comments were unflattering, it appears that the professor was expressing an opinion.

In addition, Mr. Tseng's claim that he was "outed," and thus singled-out, is not supported by the facts and the case law. There is no indication that a person reading Dr. Fume's page would connect the quoted material to this particular student. Accordingly, Mr. Tseng probably does not have sufficient facts to file a complaint based upon the tort of Intentional Infliction of Emotional Distress because a required element is missing—conduct that was extreme and outrageous.

Please let me know if you have any questions.

Best regards,

Associate
Zal Associates, LLP
800 SW Fifth Avenue, Suite 200 | Portland, OR 97204
Direct: 555-222-5556 | Fax: 555-222-5550
associate@zalassociates.com | www.zalassociates.com

The email begins with an introduction that identifies the issue to be addressed and the resolution to the legal question.

The conclusion is stated at the outset of the analysis.

The email then explains the most important rules that will dictate the outcome in this case.

Using analogical reasoning, the lawyer analogizes and distinguishes the facts from prior cases with the facts of the client's case.

Model 2—A Memorandum of Law

MEMORANDUM

To: Carla Perez
 From: Associate
 Date: August 10
 Re: Ethan Tseng's potential claims for Intentional Infliction of Emotional Distress

Question Presented

Under North Carolina common law, which provides for a claim of Intentional Infliction of Emotional Distress, and more specifically includes an element of extreme and outrageous conduct, can a college student recover when his college professor posts on social media disparaging statements about her students' class work and includes a quotation from the student's paper?

Brief Answer

Probably not. Conduct is extreme and outrageous when the defendant persistently and publicly distributes derogatory, misleading information. The law does not provide a remedy for matters of opinion. Here, the information was unflattering, but posting the information did not rise to the level of extreme or outrageous conduct.

Statement of Facts

Our client, Ethan Tseng, is 19 years old and a student at Park College, a private school in North Carolina. He was in an English Composition class taught by Dr. Susan Fume, who has a doctorate in English Composition. She has posted negative comments about her students' writing on social media, specifically on her Facebook page.

He describes her postings as stating "terrible, absolutely terrible" things about her experiences teaching at Park College. Her statements have made him "sick." The following are two of the Facebook posts Mr. Tseng saw:

September 5. I just reviewed the first set of papers from my English Comp students. They are totally incapable of putting together a grammatically correct sentence! What is the world coming to?

September 21. Another set of papers from my dopey English Comp students. Here is an example of ludicrous writing: "My life has been a challenge, a swamp. Like the trials and tribulations of a porn star or a heroin addict, I to [sic] have my demons."

Mr. Tseng claims to have written that quoted sentence in one of his papers for Dr. Fume's class and now feels "outed."

The Facebook page of Dr. Fume's friends includes 100 of her personal friends and family, plus approximately forty former students and five current students from Mr. Tseng's composition class. The current composition class has thirty students.

Mr. Tseng comes to the firm as a prospective client asking if he could bring a tort claim of intentional infliction of emotional distress against his professor.

Most legal memoranda begin with a **Question Presented** and a **Brief Answer**. Together, they act as an executive summary of the analysis below. Note that the Question Presented and Brief Answer use generic nouns rather than proper names.

The **Statement of Facts** describes the specific facts that impact the legal analysis.

Discussion

Although Dr. Fume's conduct lacked professionalism and tact, her conduct did not rise to the level of extreme and outrageous required for an intentional infliction of emotional distress claim. In North Carolina, a claim for intentional infliction of emotional distress requires a plaintiff to prove that the defendant's conduct (1) was extreme and outrageous, (2) was intended to cause severe emotional distress, and (3) did cause severe emotional distress. See *Woodruff v. Miller*, 307 S.E.2d 176, 178 (N.C. 1983). Whether the defendant's conduct reaches the level of extreme and outrageous conduct is one element of the tort and is usually a question of fact for a jury to decide. *Briggs v. Rosenthal*, 327 S.E.2d 308, 311 (N.C. Ct. App. 1985). However, when it is clear to a court that the alleged facts do not approach that high standard, courts can decide as a matter of law that the element is not met. *Id.*

The Restatement (Second) of Torts addressed this first element. "[O]utrage is essential to the tort; and the mere fact that an actor knows that the other will regard the conduct as insulting, or will have his feelings hurt is not enough." Restatement (Second) of Torts § 46, Cmt. f (1965). Liability has been found only where the conduct has been so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community. *Briggs*, 327 S.E.2d at 308, 311.

Generally courts are reluctant to find that the allegations meet the high standard of extreme and outrageous conduct. Liability cannot be found when the conduct or written word falls into a category of merely "insults, indignities, threats, annoyances, petty oppressions, or other trivialities." *Id.* at 311. For instance, unflattering information published to provide an "honest, sincere, and sensitive" portrait of a person is not extreme and outrageous conduct. *Id.* at 312. In *Briggs*, the plaintiffs were parents whose son had recently died. They sued the defendants, a journalist and a newspaper publisher, after the newspaper published an article about their recently deceased son. *Id.* at 309. The article described the son's drinking and antisocial behavior but it also described the son as an "immensely substantial person, as fine, as dignified . . . as important as any solid citizen I ever met." *Id.* The *Briggs* court found that the article, although offensive to the parents, was "honest, sincere, and sensitive." *Id.* at 312. The court then upheld the lower court's decision to dismiss the case. *Id.* Similarly, in a case where a newspaper published an article stating that a decedent had a long history of drug use, the court found this statement neither extreme nor outrageous. *Casamasina v. Worcester Telegram & Gazette, Inc.*, 307 N.E.2d 865, 867 (Mass. App. Ct. 1974).

However, when a defendant persistently distributes derogatory information for no purpose other than spite, the evidence is sufficient to establish extreme and outrageous conduct. *Woodruff*, 307 S.E.2d at 178. In *Woodruff*, the plaintiff was the superintendent of the local school system. *Id.* at 177. Thirty years ago, he had participated in a college prank and been arrested. *Id.* The defendant, after losing two recent lawsuits to the superintendent, posted copies of the superintendent's former arrest record on the "Wanted" board at the local post office and on bulletin boards at the local high school. *Id.* The defendant also showed the "Wanted" poster to at least one prominent citizen in the community. *Id.* A jury found that the defendant had intentionally inflicted emotional distress on the superintendent. *Id.* In upholding the jury decision, the *Woodruff* court explained that distributing derogatory information as part of a "calculated, persistent plan to disturb, humiliate, harass

The **Discussion** section explains the legal analysis.

The **introductory roadmap** explains the governing rule. Notice that this initial rule paragraph uses the broad rule to provide the big picture, and then continues to narrow the rule with a synthesized rule statement that focuses on the precise issue the writer is analyzing.

To **explain the law**, the writer starts with the applicable rule, in this case the Restatement.

Here, the Restatement is further explained by the **sub-rule** in *Briggs*, followed by a case illustration from *Briggs*, which sets out the facts, holding, and reasoning to provide the reader an understanding of how the rules have functioned in past cases.

and ruin the plaintiff for no other purpose but defendant's own spiteful satisfaction" was extreme and outrageous conduct. *Id.* at 178.

Dr. Susan Fume's postings on Facebook do not rise to the level of extreme and outrageous conduct. Her statements are similar to the unflattering matters of opinion expressed in the *Briggs* and *Casamasina* cases. Dr. Fume's statements were introduced by explaining she had read a set of student papers, and what followed were her general impressions. Although the statements could be seen as "indignities or insults," these statements are no more offensive than the obituary descriptions that appeared to lack malicious intent but stated unflattering opinions. Dr. Fume's posted comments are not so extreme in degree as to exceed the bounds of human decency.

In contrast, the *Woodruff* defendant's conduct differs from the facts of this case. In that case, the defendant had targeted the plaintiff in a campaign designed to hurt the single individual. Although Mr. Tseng feels "sick" about his paper being quoted, Dr. Fume's postings did not identify him, and quoting him in one posting is not the equivalent of the conduct in *Woodruff* in which multiple postings disparaged an identified individual. Mr. Tseng has not alleged any other facts that explain how students in the class would be able to identify him.

Conclusion

A complaint filed on behalf of Mr. Tseng would not likely withstand a motion to dismiss for failure to state a claim. A court would likely conclude that as a matter of law, he has not stated facts constituting extreme and outrageous conduct on the part of his college professor.

6. What are some differences you notice between the analysis in the email and the analysis in the memorandum? Fill in the blanks.

	Email	Memorandum
Length		
Question Presented and Brief Answer		
Statement of Facts		

The heart of the analysis is the **application of law** to facts. This analysis uses analogical reasoning to compare the specific facts and reasoning from the prior cases with the facts and reasoning of the client's case.

Here, the writer shows another facet of how the element is not met by explaining how the facts of the current case can be distinguished from the facts of a prior case in which the conduct rose to the standard required by the element.

The **Conclusion** restates the writer's prediction of the likely outcome of the issue.

Introduction		
Explanation of law		
Application of law to facts		

7. Why might an attorney prefer to receive legal analysis via email?

8. Why might an attorney prefer to receive legal analysis via a formal memorandum?

Exercise 1.2: Investigating Anthony Lillo's Claim for Personal Injury

Anthony Lillo wants you to take his case. Mr. Lillo tells you that he tripped on a neighbor's sidewalk near his residence in the suburbs, and he broke his ankle. He feels he should be compensated for his injury.

1. What initial questions would you ask to begin your investigation of Mr. Lillo's case?

By asking those questions, you learn that Mr. Lillo fell on the sidewalk outside of Danielle Holmes's house. He gave you the address where the accident took place, which he claimed was in the suburbs. You enter the address into Google Maps and you find that the accident actually occurred within New York City. (The neighborhood is leafy, so Mr. Lillo thinks of it as suburban.) You do some legal research and find this city ordinance:

City Code:

Section 7-210, Administrative Code, City of New York

Notwithstanding any other provision of law, the city shall not be liable for any injury to property or personal injury, including death, proximately caused by the failure to maintain sidewalks (other than sidewalks abutting one-, two-, or three-family residential real property that is (i) in whole or in part owner occupied, and (ii) used exclusively for residential purposes) in reasonably safe condition.

The ordinance is a little confusing, so break it down into its component parts.

2. Rewrite the ordinance in your own words.

3. Now that you understand the ordinance better, what additional questions would you ask? Why?

After speaking with Mr. Lillo again, you learn the following:

- Ms. Holmes lives in a one-family home that Mr. Lillo believes she owns. Mr. Lillo said that the previous owners were trying to sell it, but that if they couldn't sell it they were going to rent it out. He has seen Ms. Holmes making improvements, like putting in a new fence and painting the house, so he believes she owns it.
- Mr. Lillo fell near the driveway, where there is a crack in the sidewalk.
- Mr. Lillo frequently sees trucks—plain white trucks—parked in the driveway.

4. Check the boxes indicating the searches you would conduct to start researching this issue. If more than one apply, identify the order of the searches in your research.

- ☐ Conduct a property record check to see who owns the house.
- ☐ Conduct a Google search to determine if there is any commercial activity at the house.
- ☐ Search the Secretary of State's database to determine whether Ms. Holmes has registered a business or whether any business is being conducted at that address.
- ☐ Search court databases to see if any other litigation has been instigated against the owner of the house.
- ☐ Search NY State case databases to find cases that explain how this ordinance has been applied.
- ☐ Search federal case databases to find cases that explain how this ordinance has been applied.
- ☐ Search databases for neighboring states, such as NJ.

9. **Separate Opinions and Dissents.** Sometimes, especially in cases dealing with controversial subjects, the judges considering the case will not agree on the appropriate outcome. In these cases, judges may write additional opinions explaining their own point of view. Separate opinions generally agree with the majority, either entirely or in part, and dissents generally disagree either in whole or in part.

Because they do not express the majority will of the court, separate opinions and dissents are not binding as legal precedent. However, they can still have some persuasive value for scholars and for judges as they are considering future cases. When a case contains a separate opinion or a dissent, note what it is in the court's opinion that prompted the separate opinion. Pay special attention to dissenting opinions, as they may foreshadow alternative approaches, identify relevant political and legal controversies, or signal a future shift in a legal rule.

10. **Public policy.** Courts do not always provide policy, but when they do, it will be stated in terms of what is best for the public at large. Public policy may be phrased as why a rulemaking body intended a certain result. Alternatively, this can be included in the rationale since it likely affected why the court reached its decision.

11. **Takeaway rule from this case.** This important part of the case brief will be critical for your course outlines for exam preparation. For legal writing, it will help you with understanding how to apply this precedent case to your client's facts.² You may want to ask yourself questions such as:

- Does this case follow the general rule?
- Does this case extend the general rule to cover new facts?
- Does this case distinguish or narrow the rule so that it does not apply to the facts of the case at bar?
- Does this case justify overruling the old general rule and instead adopt a more modern rule?

12. **Disposition.** This is what the court's ultimate decision was in the case. For example, did the court affirm, reverse, remand, or vacate the decision below? Did the court grant a motion?

13. **Dicta.** You will want to note, if present, reasons given by the court on tangential matters other than the facts or issue before the court. Dicta is not present in every case, and it is not binding on future courts.

B. Sample Case Brief

In Exercise 3.2.2 for Chapter 3.2, *Reading Cases*, you read through the case of *Marietta Title Insurance Company v. Rath* to understand how to extract an implied holding from a case. Let's look at that case again, this time in the context of a case brief:

Sample Case Brief for *Marietta Title Ins. Co. v. Rath*

Name of the case: Marietta Title Insurance Co. v. Rath

Court: State Court

Year of Decision: 2016

2. For study purposes, extracting this "takeaway" rule is very useful to your case reading. Later in the semester, incorporate this takeaway rule into your course outlines to study for law school exams.

Parties: Plaintiff Marietta Title—an insurance company; Defendant is former employee—Rath

Procedural History: In trial court, Plaintiff seeks to enjoin Defendant

Facts:

1. P hired D as Senior VP, and D signed a covenant-not-to-compete agreement, restricting him from working for another title insurance co. for two years following termination.
2. D terminated employment and signed on with competitor, also in same city.
3. Evidence revealed D had relationships with specific customers assigned to his accounts and they would engage only him.
4. Also, D had knowledge of computer programs relating to clients' accounts and D had frequent contact with clients.

Issue: Whether D's services were sufficiently unique so that the court would grant P's request for an injunction to prevent D from violating the terms of the covenant not to compete.

Holding:

Rath's services were similarly unique; therefore, P's request for injunction should be granted. The court doesn't explicitly state why it held this way but considered evidence that Rath had relationships with specific customers of his assigned accounts and that these customers would engage only Rath for Marietta business. Furthermore, Rath had knowledge of computer programs that benefited the customers, and Rath had frequent contact with his customers.

Reasoning:

1. Courts have granted injunctions to enforce covenants not to compete based upon the unique services of the defendants, provided that the restrictive covenant was reasonable.
2. In *Matheson*, the court found that the former employee's relationships with the clients were special and qualified as unique services. Relationships were unique because of the highly competitive banking industry and rare talent.
3. Also relevant in *Matheson* was that clients had regular contact with the employee.

Disposition:

P's request for injunctive relief granted, and D is restricted from working with competitor.

Takeaway Rule:

In Utopia, covenants not to compete will be enforced when the former employee had unique services such as relationships with clients, frequent contact with clients, and when the employee possessed rare talents, such as having a special knowledge of a computer program useful to clients.

Remember, case briefs are yours and need to be suited to your learning style. Although many case briefs include the above parts, the format differs from person to person. Some people will type up a case brief on a separate piece of paper. Some will highlight their casebook with different colors representing the different parts. Others will draw pictures

Now, you conduct a little more research, and you find the following case: *Schwartz v. Pezzolanti*, 24 Misc. 3d 1231(a), 899 N.Y.S.2d 63 (Kings Cty. Sup. Ct. 2009):

Plaintiff Schwartz seeks to recover against Defendants Mr. and Mrs. Pezzolanti for injuries when plaintiff fell on a portion of cracked sidewalk in front of the defendants' property.

The legal rule is "that the owner of land abutting a public sidewalk owes no duty to the public to keep the sidewalk in a safe condition unless the landowner creates a defective condition in the sidewalk or uses it for a special purpose." *Otero v. City of New York*, 213 A.D.2d 339, 339–40, 624 N.Y.S.2d 157, 158 (1st Dep't 1995). However, "[w]here a landowner's driveway crosses a sidewalk, the landowner is the beneficiary of a 'special use' of the sidewalk and is obligated to keep said sidewalk in a reasonably safe condition." *Adorno v. Carty*, 23 A.D.3d 590, 591, 804 N.Y.S.2d 798, 799 (2d Dep't 2005). Here plaintiff contends that he fell on a cracked sidewalk at or adjacent to the driveway in front of Pezzolanti's home.

Defendant has moved for summary judgment dismissing the complaint. Plaintiff offers photographic evidence showing two vehicles parked in the driveway as well as deposition testimony stating the same. The driveway is adjacent to the area where plaintiff tripped and fell.

The Court finds that there are triable issues of fact as to whether the cracked area where plaintiff fell was caused by Pezzolanti's use of the driveway because plaintiff fell very close to the part of the driveway that was damaged. Even if he did not fall directly on the driveway, if the weight of traffic on the driveway could have been a concurrent cause of the defect in the sidewalk, the motion for summary judgment dismissing the complaint should be denied.

5. Having read *Schwartz v. Pezzolanti*, what are your initial thoughts about whether a court would likely dismiss Mr. Lillo's case? Are there additional questions you would like to ask Mr. Lillo or additional information you would like to pursue?

Below you will see two emails addressed to a supervising attorney. Both analyze whether Mr. Lillo could succeed in a claim against Ms. Holmes. Read and compare the following email analyses.

An Email Analysis: Version 1

From: Donovan Bonner
To: Hannah Harding
Date: February 1
Subject: Lillo's claim based on injuries from faulty sidewalk

Dear Hannah:

I found the relevant ordinance governing the question you asked me to research. That statute is New York City's administrative code section 7-210. For your convenience, I have attached a copy of that section to this email. The ordinance was a bit difficult to find because New York's administrative code is not included in the major legal databases. The administrative code was, however, referenced in a number of cases. After seeing the reference there, I looked for the code on New York City's website. I was able to download the relevant section there.

My research also revealed several relevant cases. After carefully analyzing and reviewing the cases, I believe the most factually analogous case to Mr. Lillo's case is *Schwartz v. Pezzolanti*. I believe that after you read the case, you will find the similarities striking. For your convenience, I have attached that case as well.

After you review both the ordinance and *Schwartz v. Pezzolanti*, I believe you will likely conclude that Mr. Lillo can, without question, succeed in an action against Ms. Holmes.

Please let me know if you need further assistance in this matter.

Donovan

An Email Analysis: Version 2

From: Donovan Bonner
To: Hannah Harding
Date: February 1
Subject: Lillo's claim based on defective sidewalk

Dear Ms. Harding:

You asked that I research whether Mr. Lillo could bring a claim against Ms. Holmes after he tripped on the sidewalk in front of Ms. Holmes's home. Based upon the facts as we understand them, Mr. Lillo could probably succeed in an action against Ms. Holmes, but only if he can prove that her use of her driveway falls within the "special use" exception to the City's Sidewalk Law.

New York City's sidewalk law makes the City, not the homeowner, liable for injuries occurring on sidewalks serving residential homes. New York, N.Y., Admin. Code § 7-210 (Westlaw 2018). However, there is a common law exception. Under that exception, a homeowner of a one-family residence is liable to a plaintiff injured on the sidewalk if the defendant's use of his or her driveway caused the defect. See *Schwartz v. Pezzolanti*, 24 Misc. 3d 1231(A), 899 N.Y.S.2d 63 (Kings Cty. Sup. Ct. 2009).